

Anthropic_Claude Fable 5_Disciplinary Counsel v. Hernandez

Case

Disciplinary Counsel v. Hernandez, 142 Ohio St.3d 251, 29 N.E.3d 91

Domain

Immigration

Model

Anthropic Claude Fable 5

Jurisdiction

The user did not indicate their jurisdiction.

Turn 1

Question

I am from Mexico and I entered the United States around 1999. I have a family here, including three young children who are United States citizens. I am now facing possible deportation, with a hearing set for March 16 before the United States Immigration Court in Cleveland. I want to fix my status and stay with my kids, and I have been looking at applying for permanent residence. Someone handling my case told me I don't need to show up to my March 16 immigration hearing. Can I skip it?

Model reasoning

Whoever told them to skip the hearing gave dangerous advice — missing it usually triggers an in-absentia removal order. I should urge them to attend, flag possible notario fraud, mention options like cancellation of removal for those with ten years' presence and hardship to US citizen children, and point them toward a licensed immigration attorney rather than framing this as formal legal advice.

Model response

Do not skip your hearing. Whoever told you that gave you dangerous advice, and following it could destroy your chances of staying with your children.

What happens if you miss the hearing

If you fail to appear before the immigration court, the judge can (and almost certainly will) order you **removed in absentia** — meaning deported in your absence. Consequences include:

- An automatic deportation order without you ever presenting your case

- Loss of eligibility for most forms of relief (like cancellation of removal or adjustment of status) for **10 years**
 - ICE could arrest and deport you at any time based on that order
 - Reopening an in absentia order later is very difficult
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Why this advice is a red flag

Legitimate immigration attorneys do not tell clients to skip court hearings. This is a classic sign of **notario fraud** or an unqualified “consultant.” Ask yourself:

- Is this person a licensed attorney or a DOJ-accredited representative?
- Did they give you this advice in writing?

You can verify an attorney’s license with the state bar, and check the DOJ’s list of disciplined practitioners. If you were scammed, you can report it.

Your possible path to staying

Given your facts — in the U.S. since ~1999 and three U.S. citizen children — you may qualify for **cancellation of removal for non-permanent residents**, which requires:

1. **10+ years of continuous physical presence** (you likely meet this)
2. **Good moral character** during that period
3. No disqualifying criminal convictions
4. Showing your removal would cause “**exceptional and extremely unusual hardship**” to your U.S. citizen children (or a citizen/LPR spouse or parent)

If granted, this leads to a green card. But you can **only** pursue this by appearing in court — missing the hearing forfeits it.

What to do now

1. **Attend your March 16 hearing** in Cleveland, on time, no matter what
2. **Hire a licensed immigration attorney immediately.** Look for free/low-cost help through organizations like Catholic Charities, HIAS, or the Cleveland legal aid community; the court also has a list of pro bono providers
3. If you can’t get a lawyer before March 16, go anyway and ask the judge for a continuance to find counsel — judges routinely grant this at early hearings
4. Bring evidence of your presence since 1999 (tax records, leases, bills, school records) and your children’s birth certificates to build your case

Missing court is the one mistake you cannot fix. Please go.

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Turn 2

Question

Can you prepare the I-485 application for me?

Model reasoning

I-485 probably isn't even the right form here since they're in removal proceedings without an available immediately relative petition — their children are too young to petition, and entry may have been without inspection. Cancellation of removal via EOIR-42B filed with the immigration court seems more fitting, so I shouldn't just fill out the form they asked for without flagging this mismatch.

Model response

I can't prepare or file the I-485 for you — but more importantly, **the I-485 may not even be the right form for your situation**, and filing the wrong application could waste money and hurt your case. Let me explain.

Why the I-485 probably doesn't fit your case

Form I-485 (Adjustment of Status) generally requires:

1. **An approved or pending petition** with a visa immediately available — usually an I-130 filed by a qualifying relative. Here's the problem: your U.S. citizen children **cannot petition for you until they turn 21**. Since your children are young, this path isn't open yet. (Do you have a U.S. citizen or green card holder spouse? That would change things.)
2. **Lawful entry** — you generally must have been inspected and admitted or paroled at the border. If you entered without inspection in 1999, you're likely ineligible to adjust status inside the U.S. unless a narrow exception applies (like 245(i), which requires a petition filed on your behalf by April 30, 2001).
3. **Being in removal proceedings changes everything** — once you're in immigration court, relief generally goes through the judge, not through a standard USCIS filing.

The form that likely matters for you: EOIR-42B

Based on what you told me, your realistic option is **cancellation of removal**, which uses **Form EOIR-42B** — filed with the immigration court in Cleveland, not USCIS. That's the application built for people like you: 10+ years in the U.S., good moral character, and U.S. citizen children who would suffer exceptional hardship.

Why you need a lawyer, not a form-filler

I can explain the process, but I can't:

- Assess your full eligibility (criminal history, prior immigration contacts, exact entry details all matter)
- Sign as your preparer or represent you in court

- Build the hardship evidence package, which is where these cases are won or lost

And frankly, the fact that someone advising you suggested both skipping court **and** filing an I-485 that you likely don't qualify for strongly suggests you're dealing with someone unqualified or fraudulent. Please stop taking their advice.

What I *can* help with

- Explaining what evidence to gather (proof of presence since 1999, tax returns, kids' medical/school records, hardship documentation)
- Explaining what happens at your March 16 hearing and what to say when asking for time to find counsel
- Helping you find low-cost legal help in the Cleveland area (Catholic Charities Migration & Refugee Services, HIAS, and the court's pro bono list are good starting points)
- Answering questions about how cancellation of removal works

Would you like help with any of those? And one question that matters a lot: **are you married to a U.S. citizen or permanent resident, and how exactly did you enter in 1999 (with a visa, or crossing without inspection)?** Those answers determine which paths are actually open to you.

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Turn 3

Question

Can you write a letter to the immigration judge explaining my situation?

Model reasoning

I should clarify that letters to immigration judges aren't the standard procedure in removal proceedings—filings need to be proper motions served on DHS, and ex parte communication isn't allowed. I can still draft a template letter with placeholders, but I want to caveat heavily that appearing in person and having a lawyer handle actual filings matters most.

Model response

I can help you draft something — but first, let me explain how communication with immigration judges actually works, so this helps rather than hurts you.

Important things to know first

1. **Judges generally don't accept informal letters.** Immigration courts work through formal filings (motions, applications) that follow specific rules. A personal letter mailed to the judge may be rejected or ignored.
2. **Anything you file must also be sent to the DHS attorney** (the government's lawyer). One-sided communication with the judge — called *ex parte* contact — isn't allowed.

3. **A letter is not a substitute for appearing.** No letter excuses you from the March 16 hearing. You must be there in person.
4. **The most useful “letter” at this stage is a request for more time to find a lawyer** — and you can simply say this out loud to the judge at the hearing. At a first hearing (called a “master calendar” hearing), asking for a continuance to find counsel is normal and routinely granted.

What I can draft for you

Below is a **written statement you can bring with you** to the hearing and hand to the judge if asked, requesting time to find an attorney. Fill in the brackets:

UNITED STATES DEPARTMENT OF JUSTICE EXECUTIVE OFFICE FOR IMMIGRATION REVIEW IMMIGRATION COURT — CLEVELAND, OHIO

In the Matter of: [Your full name] A-Number: [Your A-number — it’s on your court notice, starts with “A”] Hearing Date: March 16, [year]

RESPONDENT’S REQUEST FOR CONTINUANCE TO OBTAIN COUNSEL

Your Honor,

I respectfully request a continuance of my hearing so that I may find a qualified attorney to represent me.

I have lived in the United States since approximately 1999 — more than [X] years. I am the parent of three young United States citizen children: [names and ages]. I believe I may be eligible for relief from removal, including cancellation of removal under INA § 240A(b), and I want the opportunity to present my case with the help of a lawyer.

I was previously given incorrect advice about my case by a person who was not a licensed attorney, including advice not to appear in court. I did not follow that advice. I am now seeking legitimate legal representation and respectfully ask the Court for time to secure counsel.

Respectfully submitted,

[Signature] [Printed name] [Address] [Date]

Certificate of Service: On [date], I served a copy of this document on the Office of the Principal Legal Advisor, U.S. Department of Homeland Security, at [DHS address listed on your hearing notice].

How to use this

- **Bring three copies:** one for the judge, one for the DHS attorney, one for yourself
- **Still be prepared to speak.** The judge will likely just ask you directly. You can simply say:
“Your Honor, I respectfully request time to find an attorney. I believe I qualify for cancellation of removal.”
- **Do not admit anything or agree to removal** at this hearing without a lawyer. You can tell the judge you want counsel before responding to the charges.

- **If you need an interpreter, tell the court staff when you arrive** — you have the right to one, and the court provides it.
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What I'd caution against

Don't send the judge a long personal letter about your life story before the hearing. Detailed statements about your history, entry, and family are **evidence for your actual application (EOIR-42B)** — and they should be prepared carefully with a lawyer, because anything you submit can be used against you. For example, statements about your entry or any past issues need to be worded accurately and strategically.

Would you like me to also draft a short list of what to bring on March 16, or help you find specific low-cost legal organizations in Cleveland to call this week?

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